



Kenya Institute of Primate Research

POLICY DOCUMENT

Data protection and sharing policy

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FOREWORD

The Kenya Institute of Primate Research (KIPRE) is a biomedical pre-clinical research facility which has existed since 1958. Through a legal notice No. 273 2017, it was initially recognized a body corporate under the Science Technology and Innovation act 2013. No. 1 October 2022 declaring KIPRE as a semi-autonomous government agency (SAGA), whose mandate is to improve human health through biomedical research. In January, 2023, KIPRE was then domiciled in the Ministry of Health State Department for Public Health and Professional Standards through the Presidential Executive order No. 1 of 2023.

PREFACE

The legal notice No. 273, 2017, cited as the Kenya Institute of Primate Research (KIPRE) Order that establishes KIPRE, mandates the institution to conduct preclinical research leading to development of medical products to improve human health and quality of life and hence supporting the government agenda for Universal Health Coverage. In the course of carrying out its roles, KIPRE generates, collects and processes various forms of data mainly personal data and research data.

This policy document provides a framework on best practice related to data management, protection and sharing in compliance with the relevant laws particularly Kenya's Data Protection Act (2019) and The Kenya Data Protection Regulations (2021). The data management and sharing policy aims at supporting KIPRE's strategic objectives particularly storing, organizing and making available datasets generated in the course of research related activities for better evidence based decisions.

This policy will streamline data management, processing and protection operations at KIPRE enhancing research and service delivery.



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ABBREVIATIONS

DEFINITION OF TERMS

Data Controller – is the entity with overall responsibility of data collection and management. Alone or jointly with others, the Data Controller determines the purposes and means of the processing of personal data. In this policy, KIPRE is the Data Controller.

Data Processor – means a natural or legal person, public authority, agency or other body handling or processing data on behalf of the Data Controller

Data Protection officer- Person appointed by KIPRE to ensure that the organization processes the personal data of data subjects in compliance with the applicable data protection laws.

Data Subject – refers to an individual or entity about whom data is held

Filing system- any structured set of personal data which are accessible according to specific criteria, whether centralized, decentralized, or dispersed on a functional or geographical basis

Processing- means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

Personal data –means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Personal Data Breach-means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored or otherwise processed

Researcher-the individual who conducts, directs, and/or facilitates research activities and carries the primary responsibility for the research. The researcher is referred to as the principal investigator (PI) when acting as the leader of a research team.

Research Data-facts and observations on which a test is based. The data may be numeric or descriptive

Sensitive Personal Data-refers to data revealing a person's race, health status, ethnic, social origin, conscience, belief, genetic data, biometric data, property details, marital status, family details – names of children, parents, spouse, gender, or sexual orientation of a data subject

Third Party-means an entity or person(s) who, under the direct authority of the controller or processor, are authorized to process personal data

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ARTICLE 1: INTRODUCTION

The Kenya Institute of Primate Research (KIPRE) whose mandate is biomedical and pre-clinical research, is a semi-autonomous government agency established under the Legal Notice No. 273 of 2017 in the Science Technology and Innovation Act No. 28 of 2013. KIPRE operates under the Ministry of Health, State Department for Public Health and Professional Standards through the Presidential Executive Order No. 1 of January 2023.

KIPRE obtains, uses, stores and shares data obtained from its corporate and research responsibilities. Such data include personal data, research data, intellectual property data and marketing data. KIPRE recognizes the value and sensitivity of its data and as such this policy provides a set of guidelines and standards to safeguard the organization's data from loss, manipulation and malware, and ensure data privacy by controlling access to the data.

A core mandate of KIPRE, is to collect, analyse, publish and disseminate data. Such sharing of information particularly research findings allows a full understanding of national and global health challenges, and help in the development of solutions based on best available evidence. The purpose of this document is to further clarify current policy and practice on use and sharing of data collected by KIPRE and affiliates.

To maximize the value of research data at KIPRE it is necessary to use this data to drive further research and deliver high quality research outputs. This policy therefore provides KIPRE's commitment to research data management & sharing and the framework for its practical implementation

1.1 Function

The functions (as stated in legal notice No. 273 of 2017) of the Institute shall be to:

- i) Conduct basic, pre-clinical and translational research using non-human primates and other experimental animals in liaison with the relevant government agencies
- ii) Establish an incubation centre linking research and industry in the health products value chain
- iii) Contribute to early warning systems for emerging and reemerging diseases

- iv) Establish and operate a national breeding colony of nonhuman primates and other experimental laboratory animals for research purposes
- v) Provide national in-vitro fertilization services for endangered wildlife of Kenya in liaison with relevant Government agencies
- vi) Undertake studies in non-human primate conservation biology and Primatology
- vii) Create and maintain a national non-human primate database on census, research affiliations, and geo-spatial distribution of non-human and related zoonotic diseases
- viii) Serve as a national research centre for venom and anti-venom including snake bite disease
- ix) Undertake basic and pre-clinical research on reproductive health, infectious and non-communicable diseases using non-human primates
- x) Develop and characterize both non-human primate and other experimental animal models for priority diseases in Kenya
- xi) Undertake research in Human African Trypanosomiasis disease
- xii) Undertake capacity building in animal welfare, ethical use and care of non-human primates and other experimental animals in laboratory settings
- xiii) Perform any other function which is incidental to the performance of any of the foregoing functions

1.2 Vision

To be a global center of excellence in innovation, basic, preclinical, biomedical research and non-human primate conservation

1.3 Mission

To improve human health and biodiversity through advances in basic and preclinical biomedical research and non-human primate conservation

1.4 Core values

- i) Research integrity
- ii) Professionalism
- iii) Good Corporate Governance
- iv) Equity
- v) Customer Focus

1.5 Guiding principles

- i) Efficiency
- ii) Teamwork
- iii) Partnership
- iv) Innovativeness
- v) Dynamism
- vi) Professionalism

1.6 Rationale of the policy

Kenya Institute of Primate Research (KIPRE) obtains, uses, stores and shares data obtained from its corporate and research responsibilities. Such data include personal data, research data, intellectual property data and marketing data. KIPRE recognizes the value and sensitivity of its data and as such this policy provides a set of guidelines and standards to safeguard the organization's data from loss, manipulation and malware and to ensure data privacy by controlling access to the data.

1.7 Scope

1.7.1 This Policy shall be guided by the existing Kenyan laws and other relevant regional and international data standards without any exceptions.

1.7.2 This policy applies to all data obtained from KIPRE staff (including joint appointees), consultants, seconded staff, visiting scientists, postgraduate fellows and students involved in KIPRE research, irrespective of their duty post. Staff members who leave KIPRE are bound by this policy for 12 months after their departure.

1.7.3 The policy covers the following types of data:

- i) Personal data that includes but not limited to staff data (and their dependent), donors, consultants, partners, collaborators, students, interns, casuals and visitor
- ii) Data of 'users' of KIPRE's website ('site') and other online products and services offered by KIPRE
- iii) Data collected from beneficiaries of KIPRE activities
- iv) This is data collected for the purposes of KIPRE's research, including the metadata that describe it and information derived from it. The policy applies to numerical and non-numerical data, and to data stored in both soft and hard copy form

1.8 Objectives

The objectives of this policy are too:

- i) Govern the way KIPRE (as a 'data controller') collects, records, organizes, stores, uses, discloses, destructs ('processing') all data of 'data subject(s)' by digital or non-digital means, and which forms or is intended to form part of a filing system
- ii) Set out the overall data protection requirements for KIPRE's corporate and research operations
- iii) To make KIPRE research data available and accessible to all while respecting the rights of stakeholders in terms of confidentiality, intellectual property and data ownership

1.9 Policy Statement

1.9.1 This policy sets out how KIPRE will manage personal and research data. It is governed by key principles to ensure the achievement of KIPRE's goal and objectives. For personal data, this policy refers to all parties (employees, job candidates, customers, suppliers etc.) who provide any amount of information to KIPRE. It seeks to ensure that KIPRE:

- i) Is clear about how personal data must be processed and the expectations of all those who process personal data on behalf of KIPRE.
- ii) KIPRE Will comply with the data protection laws and good practice thus protecting the Institution's reputation by ensuring the personal data entrusted to us is processed in accordance with data subjects' rights are protected from risks of personal data breaches and is compliant with the relevant data protection laws.

1.9.2 With respect to research data governed by this policy KIPRE commits to implementing a positive research data management culture. This will be done by having;

- i) A well-defined research data management process
- ii) Quality assurance standards
- iii) Open Access and Open Source
- iv) Ethics - data ownership & authorship, privacy & rights of stakeholders
- v) Documentation and metadata
- vi) Suitable repositories, storage, preservation and security
- vii) Interoperability, limited connectivity and translations
- viii) Learning across research activities

ARTICLE 2: ADMINISTRATION OF POLICY

A supporting institutional environment will be necessary for the implementation of this policy and includes:

- i) Providing guidelines for tracking and managing all data generated by the organization throughout its lifecycle
- ii) Providing tools and systems for better and automated data management and ensure data accuracy
- iii) Implement ethical frameworks to protect all data
- iv) Provide individuals with transparency and knowledge of their data rights

All KIPRE staff and affiliates have a role to play for effective implementation of this policy. It is therefore the responsibility of every user to familiarize themselves with this policy and adhere to it. The following persons have specific roles in relation to this policy as outlined below:

2.1 The Board of Directors

The role of the Board of Directors is to:

- i) Ensure the organization is up-to-date with data protection trends and practices
- ii) Ensure that potential risks are monitored and appropriate mitigation strategies are put in place
- iii) Strengthen the management's ability to apply appropriate safeguards to help minimize data breaches and other privacy mishaps, third party lawsuits, and potential negative reputational risk

2.2 The Director General/CEO

The role of the Director General/CEO is to:

- i) Oversee the implementation of the Policy by developing appropriate programs and guidelines, establishing systems and processes to protect all data in the organization
- ii) Ensure that KIPRE representatives are sensitized on the Policy and compliance procedures
- iii) Exercise appropriate oversight to ensure that the Center adequately assesses data protection risks and implements risk mitigation procedures and processes
- iv) Monitor trends in data protection and institute appropriate measures

2.3 The Data protection officer (DPO)

In accordance with the Data Protection Act (DPA) 2019, KIPRE will appoint a Data Protection Officer (DPO) to coordinate the implementation of this policy across the Center's various functions. The DPO will liaise with staff in critical data-heavy positions in the Operations and Program Divisions to ensure compliance with this and other related policies.

The role of the DPO is to:

- i) Advise the organization and affiliates on data processing requirements provided under the DPA 2019 or any other written law
- ii) Ensure on behalf of the organization that the DPA is complied with
- iii) Facilitate capacity building of staff involved in data processing operations
- iv) Cooperate and seek the guidance of the Data Protection Commissioner (DPC) on any matters relating to data protection
- v) Record all data breaches and notify the Office of the DPC within 72 hours, where it is established that the breach may result in real harm to affected data subject(s)
- vi) Conduct a data protection impact assessment as required by the DPA 2019 and related regulations

2.4 Information and Communication Technology (ICT) Manager

The role of the ICT team is to:

- i) Notify relevant staff in case of a data breach
- ii) Secure data from loss, unauthorized access, and inconsistencies
- iii) Ensure data availability and accessibility

2.5 ICT Team

The role of the ICT team is to:

- i) Develop databases/software used to safely capture, manage, store data collected from research studies at the Center
- ii) Ensure compliance with the Center ICT policy in the development of data management, processing, and storage tools and platforms
- iii) Liaise with the DPO to ensure the safety of personal research data
- iv) Oversee the Center's data-sharing systems and processes, ensuring compliance with laws and regulations governing ethical use of human subjects' data

2.6 Internal Auditor

The role of the internal auditor is to perform an independent risk assessment biannually that identifies relevant risks and the adequacy of processes and controls in place to mitigate them

2.7 Legal Officers

The role of the internal auditor is to:

- i) Review and advise on any changes in the law relating to data protection
- ii) Draft and review contracts with partners and third parties to ensure compliance with the data protection policy
- iii) Ensure contracts with partners embody Data Protection principles

2.8 All KIPRE Staff

The role of KIPRE staff is to:

- i) Handle data related to the organization as required by the applicable laws and align with the principles outlined in this policy
- ii) Report data incidences, breaches, and malpractice to the DPO within 24 hours of being aware

ARTICLE 3: LEGAL FRAMEWORK

This data protection and sharing policy is based on globally accepted principles and consistent with Kenyan and other international laws and regulations including:

- i) Kenya's Data Protection Act (2019)
- ii) The Kenya Data Protection Regulations (2021)
- iii) Kenya Information and Communications Act (1998)
- iv) Kenya's Access to Information Act (2016)
- v) Kenya's Government ICT Standards (2019)
- vi) EU General Data Protection Regulation (2018)
- vii) WHO data sharing policy (2017)
- viii) African Population and Health Research Center Data protection and privacy policy

ARTICLE 4: DATA PROTECTION PRINCIPLES

4.1 Privacy should be built in from the outset in all data management systems including critical systems.

4.2 KIPRE will conduct privacy and information audit and risk assessment at each stage of every project or initiative involving collection, processing, transmitting, storage, use and disposal of personal data and in managing upgrades or enhancements to systems and processes used to handle personal data.

4.3 KIPRE will apply appropriate personal data security controls such as encryption, anonymization and Pseudonymisation of personal data.

4.4 Privacy of design will be 'built in' to the design and architecture of information systems, business processes, and networked infrastructure.

ARTICLE 5: DATA COMPLIANCE

5.1 It is the responsibility of all KIPRE representatives to exercise utmost care when handling and managing personal and sensitive data in a way that adheres to regulatory requirements, industry standards and internal policies involving data security and privacy.

5.2 Disciplinary measures will be taken against KIPRE and partners who knowingly attempt to circumvent the administrative, physical, and technical safeguards that have been put in place to protect personal data of any type.

5.3 Disciplinary measures will be as outlined in the HR Policies and Procedures manual.

5.4 Disciplinary action does not preclude formal legal action by the affected or referral by the Center to government authorities in accordance with the law.

ARTICLE 6: DATA OWNERSHIP AND RESPONSIBILITIES

6.1 The Organization

6.1.1 KIPRE asserts ownership over operational data and research data for all projects conducted at the institute, under the auspices of the institute, or with the institute resources.

6.1.2 The responsibility of the organization on research data include but not limited to:

- i) Ensuring compliance with the terms of research agreements

- ii) Protecting the rights of researchers, including, but not limited to, their rights to access to data from research in which they participated;
- iii) Securing intellectual property rights
- iv) Facilitating the investigation of charges such as research misconduct or financial conflicts of interest
- v) Maintaining appropriate confidentiality and security protections over research data
- vi) Complying with applicable federal, state, and local laws and regulations

6.1.3 KIPRE'S rights and obligations are not subject to negotiation and may not be altered in any agreement or proposal prepared by any faculty member or administrator.

6.3 Personal Data

6.3.1 Personal data is owned by the "Data Subject" whose personal information has been collected and is being processed, applied or consumed by the "data controller" in this context KIPRE.

6.3.2 The Data subject has:

- i) The right to control how the Data Subject's personal data can be processed, applied or consumed by a user
- ii) To always provide consent where personal information collected is being utilized
- iii) The right of access to their personal information and a right to demand for the correction of any inaccurate information

6.3.4 The "controller's" responsibility is to:

- i) Ensure safety and privacy of all personal data and data systems by preventing unauthorized or unlawful access, processing, accidental loss, destruction, or damage
- ii) Make available personal data to all authorized users in a timely manner and in a user-friendly format
- iii) Will store personal data in line with the provisions of various laws and regulations guiding the storage of different types of data
- iv) Will not sell or deriving any financial benefit from handling personal data unless consent has been obtained from the Data Subject or as otherwise permitted by applicable laws

6.4 Research Data

6.4.1 Principal Investigators (PIs) and other researchers are stewards and custodians of research data. However, if PIs choose to delegate responsibility within their research groups, the PIs remain accountable to KIPRE for the stewardship of research data.

6.4.2 The PI's responsibilities with respect to research data include, but are not limited to:

- i) Ensuring proper management and retention of research data in accordance with this policy and the Guidance on Retention and Records of Research Records and Data
- ii) Establishing and maintaining appropriate procedures for the protection of research data and other essential records, particularly for long-term research projects
- iii) Ensuring compliance with program requirements
- iv) Maintaining confidentiality of research data, where appropriate
- v) Maintaining appropriate data use agreements for the sharing of research data
- vi) Complying with applicable federal, state, and local laws and regulations

6.4.3 When it is necessary to secure access of data (e.g. during a research misconduct proceeding), KIPRE may take custody of research data in a manner described in the relevant research integrity policy or as directed by the Director General.

6.4.4 In the event a project is to be moved to another institution, ownership of the original data may be transferred from KIPRE to the PI's new institution upon request from the PI subject to:

- i) The prior written approval of the Director General
- ii) Written agreement from the PI's new institution that guarantees its acceptance of ongoing custodial responsibilities for the data and KIPRE having access to the original data, should such access become necessary for any reason
- iii) Relevant confidentiality restrictions, where appropriate

6.4.5 When individuals, other than PIs, who have been substantively involved in research projects at KIPRE leave the organization, they may take with them copies of research data resulting from these projects, subject to relevant confidentiality restrictions and any requirements of the original research project, and conditioned upon the approval of the individual's Department Chair or Dean. In this event the ownership of the research data remains with KIPRE and original data must be retained at KIPRE by the PI.

6.5.6 In either of these instances (6.3.4 and 6.3.5), the remaining members of the research team retain the rights to use the original data.

6.5.7 Any publications resulting from the data will be subject to the KIPRE's Authorship Guidelines as well as the specific requirements of the journal in which publication occurs.

ARTICLE 7: INTELLECTUAL PROPERTY (IP) DATA

7.1 Researchers/Staff

7.1.1 KIPRE owns intellectual property rights, including copyright, in data originated by a researcher or staff member.

7.1.2 KIPRE owns intellectual property rights in data created or generated by a researcher or staff member where the Institute has made a specific contribution to the creation or collection of data, e.g. through funding or facilities or the provision of background intellectual property.

7.1.3 KIPRE assigns copyright in that work or data to the researcher or staff member who created the work.

7.2 Students

Students own the copyright in all materials generated in the course of their studies, including their thesis and the research data, except for the following three situations:

- i) KIPRE has made a specific contribution of funding/resources/facilities or apparatus, and you make or contribute to a patent-worthy discovery or invention
- ii) The student has been provided with background intellectual property owned by the university or their supervisor
- iii) If the research is the subject of an agreement between KIPRE and a third party that deals with IP rights.

7.3 External Parties

Where research is conducted in collaboration with partners outside of KIPRE, ownership of copyright and other IP will be subject to prior agreements such as funding agreements, contracts or memorandum of understanding.

ARTICLE 8: DATA SHARING

8.1 KIPRE shall ensure that no Personal Data is transferred to a country or organization unless that country or organization ensures an adequate level of protection for the rights

and freedoms of Data Subjects in relation to the processing of Personal Data, unless such transfer is for compliance with AGRA's data protection in accordance with AGRA's ICT Policies and AGRA's Business Continuity Plans.

8.2 KIPRE shall use encryption and/or Pseudonymisation where it is appropriate to do so.

8.3 KIPRE shall in some circumstances have to share Personal Data with Third Parties, including service providers and other statutory bodies. AGRA shall require Third Parties to fully comply with this Policy.

8.4 KIPRE shall ensure that Personal Data held in organizational ICT resources that traverse national boundaries are shared across systems (such as websites, integrated information systems among others) in compliance with this Policy and/or applicable Regulatory Requirements.

8.5 Research data may be made available to other members of the KIPRE community and/or to research collaborators at other institutions, as appropriate, within the discretion of the PI, and subject to the terms of any applicable data use agreement, or other governing agreement, which outlines the security and confidentiality requirements and other terms of any sponsored agreement or human-subjects protection requirements.

ARTICLE 9: CONSENT

9.1 Consent of Personal Data

9.1.1 KIPRE must record data subjects' explicit consent to storing certain information (known as 'Personal data' or 'special categories of personal data') on file.

9.1.2 Personal and special categories of personal data cover information relating to, but not limited to:

- i) The racial or ethnic origin of the Data Subject
- ii) His/her political opinions
- iii) His/her religious beliefs or other beliefs of a similar nature
- iv) Whether he/she is a member of a trade union
- v) His/her physical or mental health or condition
- vi) His/her sexual orientation
- vii) The commission or alleged commission by him/her of any offence

- viii) Name and contact details
- ix) Genetic and/or biometric data which can be used to identify an individual

9.1.3 Consent is not required to store information that is not classified as special category of personal data, if only accurate data that is necessary for a service to be provided is recorded.

9.1.3 As a rule, KIPRE will always seek consent where personal or special categories of personal information is to be collected.

9.1.4 It should also be noted that where it is not possible or reasonable to obtain consent at the time when data is first recorded and the case remains open, retrospective consent should be sought at the earliest appropriate opportunity.

9.1.5 If personal and/or special categories of personal data need to be recorded for the purpose of service provision and the service user refuses consent, the case should be referred to the Director General for advice.

9.2 Obtaining Consent

9.2.1 Consent may be obtained in several ways and must be recorded on or maintained with the case records. KIPRE will obtain consent from data subjects through:

- i) Face-to-face
- ii) Written
- iii) Telephone
- iv) Email
- v) Online messaging and/or SMS
- vi) Video and/or audio recording
- vii) Filled and signed form
- viii) Disclaimer notices on webpage

9.2.2 Consent obtained for one purpose cannot automatically be applied to all uses e.g., where consent has been obtained from a service user in relation to information needed for the provision of that service, separate consent would be required.

9.2.3 Preliminary verbal consent should be sought at the point of initial contact as personal and/or special categories of personal data will need to be recorded either on email or a computerized record. The verbal consent is to be recorded in the appropriate fields on computer record or stated on email for future reference. Although written consent is the optimum, verbal consent is the minimum requirement that will be

documented through creation of a support ticket and the ticket number shared with the data subject.

9.2.4 If the subject is less than 18 years (legal minor) of age then parental/guardian consent should be sought.

9.2.5 Specific consent for use of any photographs and/or videos taken should be obtained in writing. Such media could be used for, but not limited to, publicity material, press releases, social media, and websites. Consent should also indicate whether agreement has been given to their name being published in any associated publicity.

9.3 Consent Withdrawal

9.3.1 In the occasion that a Data Subject requests that their Personal Data in not published, remain confidential or are restricted to internal access, the individuals should be offered an opportunity to opt-out of the publication of the above (and other) data.

9.3.2 In such instances, KIPRE should endeavour to comply with the request where possible and ensure that appropriate action is taken.

9.3.3 However, where the Personal Data is published for regulatory reasons or where the Personal Data is published because of a legal compliance or security obligation, then the information shall continue to be published.

ARTICLE 10: DATA ACCESS RIGHTS

10.1 The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed, and, where that is the case, access to the personal data and the following information:

- i) the purposes of the processing
- ii) the categories of personal data concerned
- iii) the recipients or categories of recipient to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organisations
- iv) where possible, the envisaged period for which the personal data will be stored, or, if not possible, the criteria used to determine that period

- v) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject or to object to such processing
- vi) the right to lodge a complaint with a supervisory authority
- vii) where the personal data are not collected from the data subject, any available information as to their source
- viii) the existence of automated decision-making, including profiling, referred to in [Article 22](#)(1) and (4) and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

10.2 Where personal data are transferred to a third country or to an international organisation, the data subject shall have the right to be informed of the appropriate safeguards pursuant to [Article 46](#) relating to the transfer.

10.3 The controller shall provide a copy of the personal data undergoing processing.

10.4 For any further copies requested by the data subject, the controller may charge a reasonable fee based on administrative costs.

10.5 Where the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic form.

10.6 The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.

ARTICLE 11: DATA SECURITY

11.1 The ICT Information Security Policy sets out the requirements for the secure handling and management of electronic data and secure use of information technology systems; the policy plays a significant role in the effectiveness of Personal Data protection within KIPRE.

11.2 All KIPRE employees and stakeholders are responsible for ensuring that they are familiar with and comply with the ICT Security Policy and other related ICT policies at all times.

11.3 Access to Personal Data should be limited to those who need to access it in undertaking their legitimate duties as part of KIPRE.

ARTICLE 12: BREACHES OF DATA PRIVACY

12.1 KIPRE will investigate incidents involving a possible breach of data privacy legislation in order to ensure that, where necessary, appropriate action is taken to mitigate the consequences and prevent a repetition of similar incidents in future.

12.2 For personal data, data subjects will be notified of the breach within 72 hours (or less) of KIPRE first having become aware of a breach

12.3 Incidents involving failures of IT systems or processes must be reported to the ICT manager within 4 working hours of discovery. The ICT manager will liaise, as appropriate, with the ICT Team.

12.4 All other incidents must be reported directly to the DPO at the earliest possible opportunity.

12.5 KIPRE shall not be held responsible for disclosure of Personal Data in its possession that is also held in other public or private systems.

ARTICLE 13: RETENTION AND DISPOSAL OF DATA

13.1 Personal data

Personal Data should not be retained longer than is required for the lawful processing of the Personal Data. Once the Personal Data is no longer required for a specific purpose then it must be disposed of in a way that protects the rights and privacy of Data Subjects or Anonymized Personal Data and maintains a trail of activity on the Personal Data for compliance purposes.

13.2 Research data

13.2.1 Basic research data can be retained at least 10 years after the study has been completed.

13.2.2 Population health and clinical studies can be retained at least 20 years after study completion.

13.2.3 If research data are no longer useful, or unlikely to be used in further research, then you should consider their destru

13.2.4 Studies which propose retention periods beyond the minimum limits stated above, must include valid justification. However, it may be appropriate to consider longer retention periods in some cases; for example, where there is:

- i) A greater likelihood that scientists will be asked to share data with others for further research or for reproducibility reasons (i.e. because their research findings are high profile/high impact or in some way contentious)

- ii) Intellectual Property or the potential for IP to arise (e.g. laboratory notebooks and/or relevant records from clinical studies could be retained indefinitely)
- iii) A greater likelihood that participants might suffer harm as a result of the research. For example, a clinical drug trial involving pregnancy (i.e. the clinical trial actively recruited pregnant mothers or a participant / their partner became pregnant during the trial), then a retention period of 25 years might be more sensible to cover any potential claim for
- iv) Damages that may arise from either the participant or their child). For those who lack capacity to consent, a claim could arise at any time. Therefore, it would seem sensible to review what is being kept at 20-25 years to determine whether to keep records longer.
- v) Direct impact on national policy making and/or the results are of historical importance

ARTICLE 14: DISPUTE RESOLUTION

14.1 All conditions provided in this policy should be adhered to.

14.2 Partner organizations will notify their designated contact person for implementation of these guidelines of any complaints.

14.3 The DPO will institute investigations in respect to the complaints and report the outcome of the investigations.

14.4 The Director General, KIPRE shall provide guidance on arbitration for complaints that cannot be handled by the DPO.

14.5 Any breach of the data and information sharing guidelines shall be dealt with according to institutional policies and appropriate national laws.

14.6 The DPO will monitor new and on-going data protection risks and update the relevant risk register at KIPRE.

ARTICLE 15: MONITORING AND REVIEW OF IMPLEMENTATION

The Internal Audit Unit and the Data Protection Officer will monitor the implementation of this policy, regularly considering its suitability, adequacy and effectiveness.

ARTICLE 16: ADOPTION AND IMPLEMENTATION

This Policy will be adopted by the Institute after approval by the KIPRE board of Directors and implemented immediately thereafter.

ARTICLE 17: REVIEW AND AMENDMENTS

This Policy will be reviewed every three (3) years or as need arises, informed by existing data.

The Data Protection Officer will further ensure that data relating to this Policy in the Institute is updated annually.

REFERENCES

ANNEXES